

HOUSE BILL 6005

By Lamberth

AN ACT to make appropriations for the purpose of defraying the expenses of the state government for the fiscal years beginning July 1, 2024, and July 1, 2025, in the administration, operation and maintenance of the legislative, executive and judicial branches of the various departments, institutions, offices, and agencies of the state; for certain state aid and obligations; for capital outlay, for the service of the public debt, for emergency and contingency; to repeal certain appropriations and any acts inconsistent herewith; to provide provisional continuing appropriations; and to establish certain provisions, limitations and restrictions under which appropriations may be obligated and expended. This act makes appropriations for the purposes described above for the fiscal years beginning July 1, 2024, and July 1, 2025.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. In addition to any other funds appropriated by the provisions of this act, there is appropriated \$225,800,000 (recurring) and \$198,400,000 (nonrecurring) for the sole purpose of implementing Senate Bill ____ / House Bill ____, relative to Education Freedom Scholarships, if such bill becomes a law. Of the \$225,800,000 recurring appropriation, \$148,600,000 shall be from the general fund, and \$77,200,000 shall be from the privilege tax collected under Tennessee Code Annotated, Section 4-49-104(e)(1). The Commissioner of Finance and Administration is authorized to adjust federal aid and other departmental revenue accordingly.

SECTION 2. In addition to any other funds appropriated by the provisions of this act, there is appropriated \$210,000,000 (nonrecurring) for the sole purpose of implementing Senate Bill ____ / House Bill ____, relative to the Hurricane Helene Interest Payment Fund and the

Governor's Response and Recovery Fund, if such bill becomes a law. Of the \$210,000,000 nonrecurring appropriation, \$110,000,000 shall be deposited to the Hurricane Helene Interest Payment Fund, and \$100,000,000 shall be deposited to the Governor's Response and Recovery Fund. The Commissioner of Finance and Administration is authorized to adjust federal aid and other departmental revenue accordingly.

SECTION 3. The Commissioner of Finance and Administration is hereby authorized to transfer any interest revenue accrued by the Governor's Response and Recovery Fund to the Hurricane Helene Interest Payment Fund at June 30 of each fiscal year.

The provisions of this section are subject to Senate Bill ____ / House Bill ____ becoming a law, the public welfare requiring it.

SECTION 4. In addition to any other funds appropriated by the provisions of this act, there is appropriated the sum of \$240,000,000 (nonrecurring) to the Department of Military, TEMA Disaster Relief Grants, to address cost share obligations for the non-federal share of disaster recovery costs.

SECTION 5. In addition to any other funds appropriated by the provisions of this act, there is appropriated the sum of \$20,000,000 (nonrecurring) to the Department of Finance and Administration to make a grant to the county government of Carter County for the reconstruction and relocation of Hampton High School. Any unexpended funds shall not revert to the general fund balance at June 30 and are hereby reappropriated in the subsequent fiscal year.

SECTION 6. In addition to any other funds appropriated by the provisions of this act, there is appropriated the sum of \$6,200,000 (recurring) to the Department of Education for the purpose of making distributions to local education agencies as identified pursuant to Tennessee Code Annotated, Section 49-3-108(d)(1)(A)(ii), related to active tourism development zones.

SECTION 7. In addition to any other funds appropriated by the provisions of this act, there is appropriated the sum of \$17,000,000 (recurring) to the Department of Education to

provide direct payments as financial incentives for high-performing LEAs, where more than fifty percent (50%) of schools in the LEA received an "A" letter grade, pursuant to Tennessee Code Annotated, Section 49-1-228, for the 2023-2024 school year and future school years.

SECTION 8. In addition to any other funds appropriated by the provisions of this act, there is appropriated a sum sufficient to the general assembly for the sole purpose of payment of any lawful expenses, including, but not limited to, staffing, per diem, travel, and other expenses, of the First Extraordinary Session of the One Hundred Fourteenth General Assembly. All expenses for the general assembly, upon the approval of the speaker of the senate, the speaker of the house of representatives, or both when required, shall be paid through the office of legislative administration.

SECTION 9. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 10. Section 1 of this act takes effect July 1, 2025, the public welfare requiring it. All other sections of this act take effect upon becoming a law, the public welfare requiring it.